

GENERAL TERMS AND CONDITIONS OF PURCHASE



These Terms and Conditions shall apply to LPO (Order) for supply arrangement between any Supplier of material/goods/services and M/s Chicago Maint. & Construction Co. (L.L.C).

The Order constitutes an offer by M/s Chicago Maint. & Construction Co. (L.L.C) to purchase the material/goods/services. The Order is conditional upon the Supplier's acceptance and the Supplier shall be deemed to have accepted and be bound by the Order upon the Supplier's express acceptance, or upon the Supplier:

- a. commencing the process of delivering the material/goods/services, and/or*
- b. delivering the material/goods/services, and/or*
- c. accepting payment in respect of the material/goods/services.*

These Terms and Conditions including all Orders constitute the entire understanding of the Parties and supersede all other representations, proposals, arrangements and communications whether oral, written, express or implied between the Parties regarding the subject matter hereof. Nothing in these Terms and Conditions or the Order shall limit a Party's liability for any representations made fraudulently. No variation to an Order will be valid unless it is subject to advance written agreement between the Parties prior to the commencement or delivery of the varied material/goods/services.

1. The materials/ goods/services and items ordered is subject to the approval of the authorized signatory of the company.

If the materials/goods/services or any other requirements is supplied without the approval of the authorized signatory is/are liable to be rejected at the supplier's risk and must be replaced by the supplier forthwith.

2. In case materials/goods/services is supplied at more than one place or sites separate "delivery note" for each individual supply shall be prepared based on each supply at sites.
3. Invoice for materials/goods/services supplied under this Order shall contain this order number and date and shall be sent to us along with the copy of the purchase order and delivery note.
4. Where materials/goods/services to be taken delivery from the Suppliers' store or warehouse in case of exigencies, then the Supplier should insist that the delivery note has been signed by the authorized representative of M/s Chicago Maint. & Construction Co. (L.L.C) and the original delivery note forwarded to him for having taken the goods against purchase order and the copy of the delivery note shall invariably be attached to the invoice without which payment will not be effected.
5. The Supplier shall guarantee the materials, goods and services supplied against faulty workmanship, design, specification or make for the satisfactory quality and minimum period of functioning from the date of acceptance depending on the materials, goods and services supplied against the order and for any malfunctions, defects, damaged or want of repairs of materials, goods arising within the period of guarantee period shall be replaced/rectified immediately by the Supplier free of cost within reasonable time.
6. Unless otherwise expressly agreed in writing, all contacts for the provision of Supplies to the Company by the Supplier shall be governed exclusively by these Purchase Conditions.
7. The Supplier shall indemnify M/s Chicago Maint. & Construction Co. (L.L.C) in full against all liability, loss, personal injury and death, damages, costs and expenses (including legal expenses) incurred by M/s Chicago Maint. & Construction Co. (L.L.C) in connection with any act of omission by any person or employee engaged by Supplier, or breach of contract by the Supplier in connection with the materials/goods/services.
8. These Terms and Conditions shall continue to be in force until the successful delivery of the materials/goods/services to M/s Chicago Maint. & Construction Co. (L.L.C) satisfaction as specified in the Order, or the expiry of any warranty, defect liability and/or guarantee period, whichever is later, unless either Party terminates in accordance with the provisions in Clause 9 below.
9. If the Supplier fails to perform his obligations, commits any breach of these Terms and Conditions or becomes insolvent or is subject to any form of insolvency proceedings, including but not limited to receivership, administration receivership or winding up proceedings or where applicable has received a judicial declaration of suspension of payment or shall pass a resolution for winding up (other than for the purposes of amalgamation or reconstruction) or a court shall make an order to that effect against it or shall enter into any composition or arrangement with its creditors, M/s Chicago Maint. & Construction Co. (L.L.C) may without prejudice to its other rights and remedies or any part thereof terminate the Order(s) forthwith. M/s Chicago Maint. & Construction Co. (L.L.C) shall be at liberty to, prior to the commencement and/or delivery of the materials/goods/services, whichever comes first, terminate an Order in whole or in part by written notice to the Supplier without prejudice to any other rights M/s Chicago Maint. & Construction Co. (L.L.C) may have as a result thereof.
10. The Supplier shall not assign, transfer or sub-contract any of its rights or obligations in respect of an Order to a third party without the prior written consent of M/s Chicago Maint. & Construction Co. (L.L.C).
11. When materials/goods/services to be delivered are to be manufactured in accordance with the Supplier's designs and drawings, or samples are to be submitted for approval by M/s Chicago Maint. & Construction Co. (L.L.C), the Supplier must in addition provide M/s Chicago Maint. & Construction Co. (L.L.C) with materials/goods/services that comply with the specifications or other requirements that may be detailed in the Order.
12. The Supplier shall ensure that the materials/goods/services are properly packed and secured in such a manner to ensure that they reach their destination in good condition and shall be delivered to the location stated in the Order on the date or within the period stated in the Order. Packing cases, boxes, drums, packing material and the off- loading of material/goods/services at the destination shall form part of the quoted price and shall not be separately charged by the Supplier unless otherwise mutually agreed and specified in the Order. Packaging materials shall be regarded as non-returnable unless otherwise mutually agreed and specified in the Order.



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13. The time for delivery of the materials/goods/services is stated in the Order and shall be of the essence. If the delivery dates cannot be met, the Supplier shall forthwith notify M/s Chicago Maint. & Construction Co. (L.L.C) in writing indicating the cause of delay, best delivery date(s) and a plan of action to correct the situation. M/s Chicago Maint. & Construction Co. (L.L.C) shall, in such case and without prejudice to any other rights which it may have, be entitled to cancel the Order without liability to the Supplier and make such alternative arrangements as M/s Chicago Maint. & Construction Co. (L.L.C) may consider necessary in the circumstances.

In circumstances where the delivery has been delayed beyond a Party's control (the "Affected Party") as a direct result of a Force Majeure Event acknowledged as such by the other Party, the Parties shall agree the appropriate course of action, which may include cancellation of the Order. Provided that such circumstance has been communicated by the Affected Party to the other Party by written notice within 5 days of the Force Majeure Event, the Affected Party will be absolved from all liability in respect of the delay.

Upon cancellation of the Order, M/s Chicago Maint. & Construction Co. (L.L.C) shall pay an equitable payment to the Supplier for materials/goods/services delivered before the Force Majeure Event. The Supplier shall refund to M/s Chicago Maint. & Construction Co. (L.L.C) any payments made by M/s Chicago Maint. & Construction Co. (L.L.C) for materials/goods/services (or any relevant parts thereof) not delivered by the Supplier on the date of cancellation.

14. The price of the materials/goods/services shall be as stated in the Order and agreed with the Supplier. M/s Chicago Maint. & Construction Co. (L.L.C) shall pay as mutually agreed and specified in the Order.
15. The materials/goods/services shall be carefully tested and inspected in accordance with M/s Chicago Maint. & Construction Co. (L.L.C)'s instructions prior to delivery to ensure that they comply with the requirements of the Order and/or any applicable specification supplied by M/s Chicago Maint. & Construction Co. (L.L.C). M/s Chicago Maint. & Construction Co. (L.L.C) shall not be deemed to have accepted a delivery of the materials/goods/services until M/s Chicago Maint. & Construction Co. (L.L.C) has had a reasonable time to inspect and test them following delivery to ensure they conform to the Order and these Terms and Conditions.
16. If it is found during an inspection and subsequent use of the materials/goods/services that they do not conform with M/s Chicago Maint. & Construction Co. (L.L.C)'s specification, samples supplied, or the materials/workmanship is defective, M/s Chicago Maint. & Construction Co. (L.L.C) will be entitled without prejudice to its other rights in law or otherwise to return the materials/goods/services to the Supplier for replacement at no cost to M/s Chicago Maint. & Construction Co. (L.L.C). If the Supplier is unable to provide an acceptable replacement to M/s Chicago Maint. & Construction Co. (L.L.C), the Supplier shall refund any payments made to M/s Chicago Maint. & Construction Co. (L.L.C) in relation to the materials/goods/services not accepted by M/s Chicago Maint. & Construction Co. (L.L.C).
17. The Supplier shall insure the materials/goods/services whilst in transit against loss or damage from whatever cause arising thereof, except causes resulting from a Force Majeure Event.
18. The Supplier hereby accepts and agrees to be responsible for payment of applicable customs duties and taxes imposed by any applicable government regulation or ordinance or other binding instrument in respect of the supply of the materials/goods/services.
19. If any of the provisions in these Terms and Conditions are judged to be illegal or unenforceable, the continuation in full force of the remainder of them will not be prejudiced.
20. These Terms and Conditions will be governed by and construed in accordance with Federal Law of the United Arab Emirates and the Emirate of Dubai and the Parties agree to submit to the exclusive jurisdiction of the Courts of Dubai.

